

Mohd. Muneer v. State of U.P.

Allahabad High Court · Division Bench · 18 November 2022 · Writ-C No. 34557 of 2022 · **Writ disposed of; relegated to CGRF under clause 7.10, limitation not to be examined if approached within one month.**

HEADNOTE

The Allahabad High Court disposed of the writ on the alternative remedy of the Consumer Redressal Forum under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005. If the petitioner approaches the Forum within one month, the Forum shall look into the grievance within one month thereafter without going into limitation.

FACTUAL SUMMARY

Mohd. Muneer filed Writ-C No. 34557 of 2022 in the High Court of Judicature at Allahabad against the State of Uttar Pradesh and two other respondents. A Division Bench of Siddhartha Varma, J. and Chandra Kumar Rai, J. heard the matter on 18 November 2022. The order does not describe the underlying electricity grievance, name the distribution licensee, or record any demand, disconnection, or billing history. Madhusudan Dikshit appeared for the petitioner; the Chief Standing Counsel and Narendra Kumar Tiwari appeared for the respondents.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF as alternative remedy

HOLDING

A consumer who invokes writ jurisdiction has an alternative remedy of approaching the Consumer Redressal Forum under clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005. If the petitioner approaches the Forum within one month of the High Court order, the Forum shall look into the grievance within one month thereafter without going into limitation. The writ petition is disposed of on that footing. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 Writ disposed of because clause 7.10 supplies an alternative remedy before the Consumer Redressal Forum. ¶ 1

cgrf-7.10-alternate-remedy Petitioner relegated to the Consumer Redressal Forum under clause 7.10; Forum directed to examine the grievance within one month if approached within one month, without going into limitation. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 Clause 7.10 Consumer Redressal Forum treated as the proper forum for the petitioner's electricity grievance. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The Court did not examine the substance of the grievance and left it to the Consumer Redressal Forum. ¶ 1

NOT DECIDED — LIMITATION BEFORE THE CONSUMER REDRESSAL FORUM

Limitation was not decided; the Forum was directed not to go into limitation if the petitioner approached within one month. ¶ 1

